June 19, 2017

Ms. Ruth Vetter
Alternate Designated Agency Ethics Official
Office of the General Counsel
Department of Defense
Washington DC 20310

Dear Ms. Vetter:

The purpose of this letter is to describe the steps that I will take to avoid any actual or apparent conflict of interest in the event that I am confirmed for the position of Assistant Secretary of Defense for Energy, Installations, and Environment.

As required by 18 U.S.C. § 208(a), I will not participate personally and substantially in any particular matter in which I know that I have a financial interest directly and predictably affected by the matter, or in which I know that a person whose interests are imputed to me has a financial interest directly and predictably affected by the matter, unless I first obtain a written waiver, pursuant to 18 U.S.C. § 208(b)(1), or qualify for a regulatory exemption, pursuant to 18 U.S.C. § 208(b)(2). I understand that the interests of the following persons are imputed to me: any spouse or minor child of mine; any general partner of a partnership in which I am a limited or general partner; any organization in which I serve as officer, director, trustee, general partner or employee; and any person or organization with which I am negotiating or have an arrangement concerning prospective employment.

I am the sole proprietor of the Niemeyer Group, LLC (Niemeyer Group). During my appointment to the position of Assistant Secretary of Defense for Energy, Installations, and Environment, the Niemeyer Group will cease engaging in any business, including providing consulting services to clients. During my appointment, the Niemeyer Group will remain dormant and will not advertise. I will not perform any services for the Niemeyer Group, except that I will comply with any requirements involving legal filings, taxes, and fees that are necessary to maintain the Niemeyer Group while it is in an inactive status. Any amounts owed to me by my clients will be fixed before I assume the duties of the position of the Assistant Secretary of Defense for Energy, Installations, and Environment, and I will not participate personally and substantially in any particular matter that to my knowledge has a direct and predictable effect on the ability or willingness of any client to pay the agreed upon amounts. As Assistant Secretary of Defense for Energy, Installations, and Environment, I will not participate personally and substantially in any particular matter that to my knowledge has a direct and predictable effect on the financial interests of the Niemeyer Group. In addition, I will not participate personally and substantially in any particular matter involving specific parties in which I know a former client of mine is a party or represents a party for a period of one year

after I last provided service to that client, unless I am first authorized to participate, pursuant to 5 C.F.R. § 2635.502(d).

Upon confirmation, I will end my working relationships with the Government Affairs Institute and Alan L. Freed Associates, Inc. For a period of one year following the end of my working relationships with these entities, I will not participate personally and substantially in any particular matter involving specific parties in which I know either entity is a party or represents a party, unless I am first authorized to participate, pursuant to 5 C.F.R. § 2635.502(d).

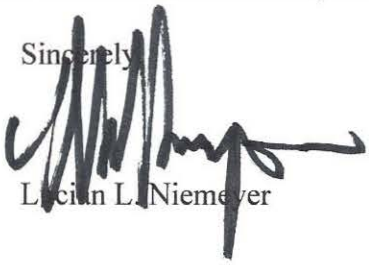
If I have a managed account or otherwise use the services of an investment professional during my appointment, I will ensure that the account manager or investment professional obtains my prior approval on a case-by-case basis for the purchase of any assets other than cash, cash equivalents, investment funds that qualify for the exemption at 5 C.F.R. § 2640.201(a), obligations of the United States, or municipal bonds.

I will meet in person with you or an ethics counselor in your office during the first week of my service in the position of Assistant Secretary of Defense for Energy, Installations, and Environment in order to complete the initial ethics briefing required under 5 C.F.R. § 2638.305. Within 90 days of my confirmation, I will document my compliance with this ethics agreement by notifying you in writing when I have completed the steps described in this ethics agreement.

I understand that as an appointee I will be required to sign the Ethics Pledge (Exec. Order No. 13770) and that I will be bound by the requirements and restrictions therein in addition to the commitments I have made in this ethics agreement.

I have been advised that this ethics agreement will be posted publicly, consistent with 5 U.S.C. § 552, on the website of the U.S. Office of Government Ethics with ethics agreements of other Presidential nominees who file public financial disclosure reports.

Sincerely,



Lucian L. Niemeyer